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U.S. Department of State Diplomacy in Action

Lebanon

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Lebanon is a parliamentary republic in which, based on the unwritten "National Pact of 1943" the President is a Maronite Christian, the Prime Minister a Sunni Muslim, and the Speaker of the Chamber of Deputies a Shi'a Muslim. President Emile Lahoud took office in 1998 after an election heavily influenced by Syria. The Parliament consists of 128 deputies, equally divided between Christian and Muslim representatives. In parliamentary elections in August and September, former Prime Minister Rafiq Hariri defeated incumbent Salim Al-Hoss. President Lahoud named Hariri Prime Minister in October. According to international observers, the elections were flawed and the outcome was heavily influenced by the Syrian Government; however, there reportedly were fewer voting irregularities than in the 1996 parliamentary elections. The judiciary is independent in principle; however, it is subject to political pressure.

Non-Lebanese military and paramilitary forces control much of the country. Approximately 25,000 Syrian troops are stationed in locations throughout the country, excluding the south. In addition, several armed Palestinian factions are located in refugee camps, although their freedom of movement is restricted significantly. The contingent of approximately 2,000 Israeli army regulars and 1,500 Israeli-supported militiamen that had controlled parts of the south withdrew from the region completely by May. All undermined the authority of the central Government and interfered with the application of law in the patchwork of areas not under the Government's control. In 1991 the Governments of Syria and Lebanon concluded a security agreement that provided a framework for security cooperation between their armed forces. However, an undetermined number of Syrian military intelligence personnel in the country continue to conduct their activities independently of the agreement.

In 1989 the Arab League brokered a peace settlement at Taif, Saudi Arabia, to end the country's civil war. According to the Taif Accord, the Syrian and Lebanese Governments were to determine the redeployment of Syrian troops from their position in Lebanon's coastal population areas to specified areas of the Bika' Valley, with full withdrawal contingent upon subsequent agreement by both Governments. The Syrian Government has not carried out this partial redeployment, and strong Syrian influence over Lebanese politics and decisionmakers makes officials unwilling to press for a complete withdrawal. Since the Taif Accord was signed, no government has requested formally the withdrawal of Syrian forces. The Government's relationship with Syria does not reflect the will of most of the country's citizens.

Until May Israel exerted control in or near its self-proclaimed "security zone" in the south through direct military action and support for its surrogate, the South Lebanon Army (SLA). With the tacit support of the Government, the Iranian-backed Shi'a Muslim faction Hizballah, and, to a much lesser extent, the Lebanese Shi'a group Amal and some Palestinian guerrillas were

locked in a cycle of attack and counterattack with Israeli and SLA troops. In May after 22 years of occupation, Israeli Defense Forces (IDF) troops withdrew from the south and West Biqa', and the SLA disbanded. Following the withdrawal, the Government deployed over 1,000 police and soldiers to the former security zone. After the withdrawal, Hizballah guerrillas maintained observation posts and conducted patrols along the border with Israel. The United Nations Interim Forces in Lebanon (UNIFIL) also increased its area of operations following the Israeli withdrawal. Palestinian groups operate autonomously in refugee camps throughout the country. The Government did not attempt to reassert state control over the Palestinian camps or to disarm Hizballah.

The security forces consist of the Lebanese Armed Forces (LAF), which may arrest and detain suspects on national security grounds; the Internal Security Forces (ISF), which enforces laws, conducts searches and arrests, and refers cases to the judiciary; and the State Security Apparatus and the Surete Generale, both of which collect information on groups deemed a possible threat to state security. The Surete Generale is responsible for the issuance of passports and residency permits, the screening and censoring of foreign periodicals, plays, documentaries, television programs, and movies, and the censoring of those parts that address national security issues and "morale." The security forces committed serious human rights abuses.

Before the 1975-90 hostilities, the country was an important regional financial and commercial center. There is a market-based economy in which the majority of the private sector work force is employed in the services sector, such as banking and commerce. There is a small industrial sector, based largely on clothing manufacture and food processing. The annual gross national product is estimated to be approximately \$5,000 per capita. A reconstruction effort begun in 1992 is moving forward. Substantial remittances from abroad offset the trade deficit and resulted in a balance of payment surplus. The economy has been in recession since 1998. Almost all economic indicators pointed to decline. The budget deficit stood at 46 percent of expenditure, compared with 37 percent for the corresponding period in 1999, and foreign investments dropped by 13 percent. The per capita gross domestic product (GDP) is estimated at \$4,700 and unemployment is estimated to be as high as 20 percent. The country has a substantial public debt of \$22 billion (140 percent of the GDP).

The Government's overall human rights record was poor, and serious problems remain, although there were some improvements in a few areas. The right of citizens to change their government remains significantly restricted by the lack of government control over parts of the country, shortcomings in the electoral system, and Syrian influence. The August and September parliamentary elections were flawed and suffered from Syrian government influence. Members of the security forces used excessive force and tortured and abused some detainees. Prison conditions remained poor. Government abuses also included the arbitrary arrest and detention of persons who opposed government policies. Lengthy pretrial detention and long delays in trials are problems, and the courts are subject to political pressure. International observers reported that trials of former SLA personnel were not free and fair. The Government infringed on citizens' privacy rights, and continued surveillance of political activities during the year. The Government partially limited press freedom by continuing to restrict radio and television broadcasting in a discriminatory manner. Journalists practice self-censorship. The Government continued to restrict freedom of assembly, and imposes some limits on freedom of association. There are some restrictions on freedom of religion. The Government imposes some limits on freedom of movement. Violence and discrimination against women; abuse of children; discrimination against Palestinians; forced labor, including by children; child labor; and the mistreatment of foreign servants are problems.

Until the IDF withdrawal and the collapse of the SLA, artillery and aerial attacks by the various contending forces in southern Lebanon threatened life and property. These forces committed abuses, including killings, bombings, and abductions. The SLA maintained a separate and arbitrary system of justice in the zone formerly controlled by Israeli forces, which was independent of Lebanese central authority. Prior to the SLA collapse, its officials arbitrarily arrested, mistreated, and detained persons, and sometimes expelled local residents from their homes in the zone. Palestinian groups in refugee camps maintain a separate, often arbitrary, system of justice for other Palestinians. Palestinians sometimes may appeal for legal recourse to Lebanese authorities, often through their agents in the camps. In the past, there were reports that members of the various groups that control the camps detained their Palestinian rivals and, in some instances, killed them; however, there were no reports that this occurred during the year.

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

There were no reports of political killings by government authorities during the year.

Four persons died in custody during the year. In January a Sudanese asylum seeker died of malaria in Zahle prison. Prison officials reportedly did not offer him medical treatment before his death. An elderly SLA member died in custody in June allegedly because prison officials refused to provide him with his medicine, which was manufactured in Israel. In November one SLA detainee died of cancer and another SLA detainee died from high blood pressure. The Military Court initiated an investigation into the two deaths to determine whether or not the detainees received proper medical treatment; however, it had not reached conclusions by year's end. The Government subsequently announced that it would review the medical records of all former SLA detainees (see Section 1.c.).

In October 1999, one person was killed when a bomb exploded in a Maronite church in Beirut (see Section 5).

In December 1999, Sunni extremists killed four LAF soldiers in an ambush in the northern region of Dinniyeh after the soldiers attempted to arrest two Sunni Muslims allegedly involved in a series of church bombings. On December 31, 1999, the LAF retaliated by launching a massive military operation against Sunni insurgents in the north. Five civilians, 7 LAF soldiers, and 15 insurgents were killed in the operation (see Section 5).

The judicial system continues to suffer from a backlog of hearings into cases of death in custody, some as old as 6 years. Such cases sometimes involve individuals connected to political groups or accused of criminal activity.

There were no new developments in the case of the June 1999 killings of four judicial officials at a courthouse in Sidon. The perpetrators reportedly are members of the outlawed Palestinian group "Asbat al-Ansar"; however, government authorities did not arrest any of the suspected gunmen, who are believed to be hiding in the Palestinian refugee camp of Ain-Al Hilwah.

A military tribunal in 1999 sentenced Captain Camille Yared to 10 years in prison and 4 Lebanese Forces militiamen to death in absentia for carrying out a 1996 bus bombing in Syria, which killed 11 persons. The court also sentenced 13 other Lebanese Forces members to 7 years in prison. An appeal in the case was scheduled to be held in January 2001.

There were no developments in the 1996 beating death of Akram Arbeed, who allegedly was attacked while accompanying a candidate in the 1996 parliamentary election. The case is still pending.

A court hearing in the 1998 appeal made by the prosecutor's office regarding the 1976 killing of U.S. Ambassador Francis Meloy, Embassy officer Robert Waring, and their driver, Zohair Moghrabi, has not been scheduled following a court verdict declaring the suspect, Tawfiq Mohammad Farroukh, not guilty of murder for his role in the killings.

The cycle of violence in and around the former Israeli controlled security zone decreased significantly following the IDF withdrawal in May. However, prior to the withdrawal, an estimated 20 Islamic resistance guerrillas, 8 Israeli soldiers, and 25 Lebanese civilians were killed in the south as Hizballah, Amal, and Palestinian guerrillas on the one hand, and Israeli forces and the SLA on the other, engaged in recurring violence. For example, in May Hizballah attacks in the north of Israel killed 1 person and injured 12. In retaliation for these attacks, Israel shelled military and civilian targets in the south, killing two persons. Israeli forces conducted air strikes and artillery barrages on Hizballah, Amal, and Palestinian targets, including civilian infrastructure, inside Lebanon. For example, on February 8, in response to Hizballah attacks Israel conducted air strikes on electrical power transformer stations and other targets, injuring over one dozen civilians.

There were over 110 civilian injuries prior to the May Israeli withdrawal, with most of the injuries involving minor wounds from shrapnel and broken glass. Civilians accounted for over 70 percent of the injured.

During the May IDF withdrawal from the south and the concurrent collapse of the SLA, Israeli forces killed at least four Lebanese civilians.

On October 7, IDF personnel killed 2 persons and injured 25 along the Israeli-Lebanese border during demonstrations against Israeli government actions in Israel, the West Bank, and Gaza (see Section 2.b.). On October 7, Hizballah launched shells on IDF positions in the She'ba farms area in the Golan Heights; no injuries reportedly resulted from the shelling.

On November 25, Hizballah guerrillas bombed an Israeli patrol station in the She'ba farms area, killing 1 IDF soldier. In response, Israel launched airstrikes on Hizballah positions in the south, injuring one person.

b. Disappearance

There were no reports of politically motivated disappearances.

The Government did not take any judicial action against groups known to be responsible for the kidnappings of thousands of persons during the 1975-1990 civil war.

In 1999 the Government established a military commission to investigate the fate of all those who disappeared during the civil war. In September the commission concluded that all persons who disappeared at least 4 years before the end of the civil war were dead. The Government endorsed the commission report and then-Prime Minister Salim al-Hoss called on all families to "accept reality despite its bitterness;" however, many of the family members of persons who disappeared rejected the commission's findings and called for the creation of a new commission.

In October during violent clashes in Israel, the West Bank, and Gaza, Hizballah guerillas kidnaped 3 Israeli soldiers on patrol in the north of Israel, demanding that the Israeli Government release all remaining Lebanese detainees in Israeli prisons. At year's end, Hizballah continued to hold captive the soldiers.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

Torture is not banned specifically by the Constitution, and there continued to be credible reports that security forces abused detainees and, in some instances, used torture. Human rights groups report that torture is a common practice. Violent abuse usually occurs during the preliminary investigations that are conducted at police stations or military installations, where suspects are interrogated in the absence of an attorney. Such abuse occurs despite laws that prevent judges from accepting any confession extracted under duress.

The Government held incommunicado most of the 2,400 SLA personnel who surrendered to authorities following the IDF's withdrawal from the south in May (see Section 1.d.). Some former SLA detainees reported that they were abused or tortured. Amnesty International (AI) and other human rights organizations reported that some detainees were beaten, handcuffed, blindfolded, and forced to lie face down on the ground.

In 1999 police officials allegedly tortured in detention a number of Sunni youths who were suspected in involvement in a series of church bombings (see Sections 1.d. and 5).

In March ISF personnel used excessive force to disperse a demonstration in front of the Prime Minister's residence protesting the Government's expulsion of four Japanese Red Army members to Jordan. The officers injured at least one demonstrator and a journalist (see Sections 2.a. and 2.b.). The Government took no action against the officers. Ten demonstrators were arrested but were released shortly afterwards.

On April 17, in Beirut security forces used excessive force to break up a demonstration calling for the withdrawal of Syrian forces from the country; 13 persons were injured, and 8 persons were arrested and subsequently tried and sentenced by a military court (see Sections 1.d. and 1.e.).

On numerous occasions following the May IDF withdrawal from the south, civilians threw rocks, hot oil, and Molotov cocktails at IDF soldiers across the border, which resulted in some injuries. Hizballah reportedly supported these cross-border attacks, and the Government did little to halt them. On several occasions IDF troops returned fire and sometimes injured civilians.

Abuses occurred in areas outside the State's authority, including the Palestinian refugee camps. There were reports during the year that members of the various groups that control the camps detained their Palestinian rivals (see Section 1.d.).

Prison conditions are poor and do not meet minimum international standards. The Ministry of Interior operates 18 prisons with a total capacity of 3,840 inmates. However, prisons are overcrowded, with a total population of about 8,375. Inmates lack heat, adequate toilet facilities, and proper medical care. The Government has not budgeted funds to overhaul the prison system. In September the Beirut Bar Association organized a conference composed of local and international participants to underscore the need for local penal reform. The head of the Association described the country's prison facilities as "unfit for animals." The Government made an effort to carry out rehabilitation for some inmates. Inmates at Roumieh prison participated in vocational activities such as computer training courses in order to provide them with skills upon release. In September 36 inmates in Roumieh prison received certificates of accomplishment following completion of a computer training program.

Three SLA detainees died of natural causes in custody during the year; however, one detainee died allegedly because prison officials refused to provide him with his medicine, which was manufactured in Israel. One Sudanese detainee died of malaria during the year after prison officials reportedly refused to offer him medical assistance (see Section 1.a.). The Surete Generale, which mans border posts, operates a detention facility. Hundreds of foreigners, mostly Egyptians and Sri Lankans, are detained there pending deportation. They reportedly are held in small, poorly ventilated cells.

Former Lebanese Forces leader Samir Ja'Ja', who is serving four life sentences for the murder or attempted murder of various political figures during and after the civil war, is kept in solitary confinement in a prison in the basement of the Ministry of Defense. He is permitted minimal exercise and allowed only periodic visits from his family and lawyers. He is not allowed to read newspapers or listen to the radio. Government officials stated that his solitary confinement is necessary for his own protection.

Local journalists and human rights organizations had access to certain prisons during the year. Access to prisons controlled by the Ministry of Defense was not permitted. Following the Israeli withdrawal from the south, the Government did not grant independent monitors access to former SLA soldiers in custody. In December government officials stated that International Committee of the Red Cross (ICRC) representatives would be allowed to visit all SLA detainees; however, the Government did not sign a memorandum of understanding by year's end.

Prior to the Israeli withdrawal from the south, Hizballah detained and reportedly mistreated SLA members and suspected agents at unknown locations. The SLA operated its own detention facility, Al-Khiam prison, and there were frequent allegations of torture and mistreatment of detainees (see Section 1.d.). Hizballah and the SLA occasionally released and exchanged prisoners.

Hizballah did not permit prison visits by human rights monitors. Before its May dissolution, the SLA allowed representatives of the ICRC and family members of inmates to visit detainees at Al-Khiam prison.

d. Arbitrary Arrest, Detention, or Exile

The Government uses arbitrary arrest and detention. The law requires security forces to obtain warrants before making arrests; however, military prosecutors, who are responsible for cases involving the military as well as those involving espionage, treason, weapons possession, and draft evasion, make arrests without warrants. Arresting officers are required to refer a subject to a prosecutor within 24 hours of arrest, but frequently do not do so.

The law requires the authorities to release suspects after 48 hours of arrest if no formal charges are brought against them. Some prosecutors flout this requirement and detain suspects for long periods in pretrial confinement without a court order. The law authorizes judges to remand suspects to incommunicado detention for 10 days with a possible extension for an additional 10 days. Bail is available only to those accused of petty crimes, not to those accused of felonies. Defendants have the right to legal counsel, but there is no state-funded public defender's office. The Bar Association operates an office for those who cannot afford a lawyer, and the court panel on many occasions has asked the Bar Association to appoint lawyers for defendants.

Security forces continued the practice of arbitrary arrest. Security forces detained and interrogated scores of citizens, predominately Christian supporters of exiled General Michel 'Awn, and of the jailed commander of the disbanded Lebanese Forces, Samir Ja'Ja'. These detentions and searches of homes took place without warrants, and detainees claim that they were not given access to lawyers. Most detainees were released after they were forced to sign documents stating that they would abstain from politics.

In 1999 police officials detained and allegedly tortured a number of Sunni youths for suspected involvement in church bombings; however, the youths later were released due to a lack of evidence (see Sections 1.a. and 5).

On April 13, authorities detained students from the National Free Current, a pro-'Awnist group, for distributing antigovernment and anti-Syria leaflets (see Section 2.a.). In April ISF personnel arrested and subsequently released a number of demonstrators (see Sections 1.c. and 2.b.). In September authorities detained nine Lebanese Forces activists in connection with a rally protesting the Syrian presence in Lebanon (see Section 2.b.); authorities released these detainees after they paid a monetary fine.

The Government held incommunicado most of the 2,400 SLA members who surrendered to the authorities following the IDF's withdrawal from the south in May (see Section 1.c.).

The authorities often detain without charges for short periods of time political opponents of the Syrian and Lebanese Governments. Most of the former senior government officials who were detained in 1999 on charges of embezzlement or misuse of power were released on bail, including former Minister of Petroleum Shahe Baroumian. The former officials were detained without charge for prolonged periods of time in Roumieh prison, in violation of due process. Legal actions still are pending against them; however, they are free to travel abroad.

Palestinian refugees are subject to arrest, detention, and harassment by state security forces, Syrian forces, various militias, and rival Palestinians.

There were no allegations during the year of the transfer of citizens by government authorities to Syria. In December the Syrian Government transferred 46 Lebanese citizens, 7 Palestinian residents of Lebanon, and 1 Egyptian citizen from Syrian prisons to Lebanese custody. The Government announced that it will review each case; persons who have completed their sentences will be released, and persons with outstanding prison time will continue to serve out their sentences. Human rights activists believe that there are remaining Lebanese detainees in Syrian prisons; however, the exact number is unknown. Amnesty International reported in 1999 that "hundreds of Lebanese, Palestinians, and Jordanians have been arbitrarily arrested, some over 2 decades ago, and remain in prolonged and often secret detention in Syria." According to AI, Syrian forces operating in Lebanon carried out searches, arrests, and detentions of Lebanese nationals outside any legal framework.

In August Syria released Shaykh Hashem Minqara, a radical Sunni member of the Islamic Unification Movement ("Tawheed"), who was arrested by Syrian forces in 1985 and transferred to Syria.

Abuses occurred in areas outside the state's authority, including the Palestinian refugee camps. There were reports during the year that members of the various groups that control the camps detained their Palestinian rivals.

Local militias, including Hizballah, continued to conduct arbitrary arrests in areas outside central government control. There were credible reports that Hizballah detained scores of former SLA militiamen before handing them over to government authorities for trial.

Prior to the Israeli withdrawal, the SLA operated its own detention facility, Al-Khiam prison. There were frequent reports of torture and mistreatment of detainees. Following the disbandment of the SLA in May, all of the prison's 140 inmates were released. A number of former inmates publicly recounted incidents of abuse by prison officials (see Section 1.c.).

In April the Israeli Government released 13 Lebanese detainees who were held without charge in Israel for as long as 14 years; the former detainees returned to Lebanon under the auspices of the ICRC. Israel continues to hold 21 Lebanese citizens, including Sheikh Abed Al-Karim Obaid and Mustafa Dirani.

Exile as a form of punishment is not practiced regularly; however, in 1991 the Government pardoned former army commander General Michel 'Awn and two of his aides on the condition that they depart the country and remain in exile for 5 years; 'Awn remained in France at year's end. 'Awn was accused of usurping power. Former President Amine Gemayel, who lived in France in exile for the past 12 years, returned to the country in July.

e. Denial of Fair Public Trial

The judiciary is independent in principle; however, it is subject to political pressure. The Constitution provides for a constitutional council to supervise the constitutionality of laws and stipulates that judges shall be independent in the exercise of their duties; however, influential politicians as well as Syrian and Lebanese intelligence officers sometimes intervene to protect their supporters from prosecution.

The judicial system is composed of the regular civilian courts; the Military Court, which tries cases involving military personnel and military-related issues; the Judicial Council, which tries national security cases; and the tribunals of the various religious affiliations, which adjudicate matters of personal status, including marriage, divorce, inheritance, and child custody.

The Judicial Council is a permanent tribunal of five senior judges that adjudicates threats to national security. On the recommendation of the Minister of Justice, the Cabinet decides whether to try a case before this tribunal. Verdicts from this tribunal are irrevocable and may not be appealed.

The Ministry of Justice appoints all other judges according to a formula based on the religious affiliation of the prospective judge. A shortage of judges has impeded efforts to adjudicate cases backlogged during years of internal conflicts. Trial delays are aggravated by the Government's inability to conduct investigations in areas outside of its control. Defendants have the right to examine evidence against them. The testimony of a woman is equal to that of a man.

In April the military court sentenced eight students to between 10 days and 6 weeks in prison following their participation in demonstrations against the presence of Syrian troops in the country (see Sections 1.c., 1.d., and 2.b.). All of the students had been released by year's end.

In June the Military Court began trying the cases of the 3,033 SLA militiamen who surrendered to the Government following the Israeli withdrawal from the south. Some of the former SLA militiamen were charged under Article 273 of the Penal Code for taking up arms against the State, an offense punishable by death; others were charged under Article 285 of the Penal Code for trading with the enemy, an offense punishable by a minimum of 1 year in prison. Domestic human rights groups and

international nongovernmental organizations (NGO's) reported that the trials were open to journalists and members of the public, but were not fair. Amnesty International reported that "such summary trials," with barely 7 minutes spent on each individual neither allow the innocent to be acquitted nor ensure the discovery of those who may be guilty of war crimes. According to AI, the court tried between 23 and 43 persons each day. SLA lawyers who requested an adjournment to study the files of detainees were granted additional time. However, in most cases, defense lawyers received the file shortly before trial and consequently were unable to argue the cases individually. The standard defense presented by lawyers for the militiamen was that the Government had been unable to defend citizens living under Israeli occupation for the last 22 years. Therefore the residents had no choice but to work with the occupiers.

By year's end, 2,035 former SLA members received sentences ranging from 1 week to life imprisonment. About one-third of the former SLA members received 1-year prison sentences and about one-third received sentences of 3 to 4 weeks under Article 273 of the Penal Code, which criminalizes taking up arms against the State. Two persons who were implicated in the abuse and torture of prisoners at Al-Khiam prison were sentenced to life in prison. The Military Prosecutor recommended the death sentence for 37 former SLA militiamen for allegedly killing members of "the resistance" (i.e., Hizballah). Twenty-one of these militiamen were tried while in government custody; however, 16 were tried in absentia. The Military Court denied every recommendation for the death sentence and handed down lighter sentences in each case. Following attacks by angry crowds on two former SLA members in their villages, the court amended the sentences of some persons, barring them from returning to their villages for several years. According to the Government, these bans were issued to protect the former SLA members and were difficult to enforce. There were no additional reports that former SLA members who returned to their villages were subjected to harassment. The Government released most of the 220 SLA militiamen who were tried following the June 1999 SLA withdrawal from Jezzine in the south; however, 9 remained in prison at year's end.

Hizballah applies Islamic laws in areas under its control. Palestinian groups in refugee camps operate an autonomous and arbitrary system of justice. The SLA also maintained a separate and arbitrary system of justice before its May disbandment.

There were no reports of political prisoners.

f. Arbitrary Interference With Privacy, Family, Home, or Correspondence

While the authorities generally show little interest in controlling the personal lives of citizens, they readily interfere with the privacy of persons regarded as foes of the Government. Laws require that prosecutors obtain warrants before entering houses except when the army is in hot pursuit of armed attackers; however, in practice the law is not respected.

The Government and Syrian intelligence services use informer networks and monitor telephones to gather information on their adversaries. The Army Intelligence Service monitors the movements and activities of members of opposition groups (see Section 2.b.). The Government concedes that telephone calls are monitored by security services, but claims that monitoring occurs only with prior authorization from competent judicial authorities. During September 1999 parliamentary hearings, the Speaker of Parliament, the Minister of Interior, and the Surete Generale Director General publicly acknowledged that government officials frequently monitor citizens' private telephone conversations.

Politicians and human rights advocates report increasing and more overt government intelligence services' surveillance of political meetings and political activities across the religious and political spectrum. In October 1999, the Parliament passed a law that authorized surveillance in national security and law enforcement cases, but banned its use against ministers and parliamentary deputies.

Militias and non-Lebanese forces operating outside the area of central government authority frequently have violated citizens' privacy rights. Various factions also use informer networks and the monitoring of telephones to obtain information on their adversaries.

In August government officials raided the office of an Internet service provider (ISP) based on allegations that the ISP was distributing pornographic materials through the operation of a web site targeted for the homosexual community (see Section 2.a.).

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of the press; however, the Government partially limits this right in practice, particularly by intimidating journalists and broadcasters into practicing self-censorship. In 1998 the Government rescinded a total ban on satellite news; however, it continues to censor television broadcasts on a case-by-case basis.

The country has a long history of freedom of opinion, speech, and the press. Although there were repeated attempts to restrict these freedoms during the year, daily criticism of government policies and leaders continued. Dozens of newspapers and hundreds of periodicals are published throughout the country, financed by various local and foreign groups. While the press is independent, press content often reflects the opinions of these financial backers.

The Government has several tools at its disposal to control freedom of expression. The Surete Generale is authorized to approve all foreign magazines and non-periodical works, including plays, books, and films, before they are distributed in the market. The law prohibits attacks on the dignity of the Head of State or foreign leaders. The Government may prosecute offending journalists and publications in the Publications Court, a special tribunal empowered to try such matters.

Moreover, the 1991 security agreement between Lebanon and Syria contains a provision that effectively prohibits the publication of any information deemed harmful to the security of either state. In view of the risk of prosecution, journalists censor themselves on matters related to Syria.

During the year, the Government did not bring charges against any newspaper. In 1999 President Lahoud announced that under his tenure no charges would be brought against any journalist because of his writings or opinions. However, in June the Surete Generale banned seven foreign publications for allegedly insulting the late Syrian President Hafez Al-Asad. The Surete Generale seized at the airport four newspapers and three magazines -- The Herald Tribune, Le Monde, Liberation, the Financial Times, the Economist, Time, and Newsweek. The Surete stated that "there were malicious attacks in some publications which were not about political thinking but only sought to defame Al-Asad and hurt the feelings of those upset by his death." In September the Government banned an edition of The Economist because it contained an article about Syria and the Middle East peace process, which was deemed insulting to the Syrian Government. In December the State Prosecutor's office questioned a journalist and two directors of An-Nahar newspaper about an article that was critical of both the Lebanese and Syrian security services. Following the interrogation, the State Prosecutor released all three persons.

In April ISF personnel injured a journalist who was covering a protest (see Section 1.c.). On April 13, authorities detained persons for distributing antigovernment and anti-Syria leaflets. The Military Court subsequently sentenced eight students to varying lengths of time in prison. All of the students had been released by year's end (see Sections 1.d. and 1.e.).

In May Dr. Muhammad Mugraby criticized the country's judicial system at a press conference. The State Prosecutor's office requested that the Bar Association lift Dr. Mugraby's immunity in order to prosecute him for defaming the judiciary, and the Bar Association complied with this request. However, Mugraby challenged the decision of the Bar Association; the case was pending at year's end.

In June the Government cancelled the passport of a correspondent for Al-Hayat newspaper, allegedly because she "fraternized with the enemy" when she appeared publicly with an Israeli official. The Government reissued the journalist's passport shortly after the incident.

In June the Military Court sentenced a man to 1 year imprisonment for calling on the public to celebrate the death of the late Syrian president Al-Asad.

In August government officials raided the office of an Internet service provider (ISP) based on allegations that the ISP was distributing pornographic materials through operation of a website aimed at the homosexual community. The Government also pressed charges against the owner of the ISP and a human rights activist on national security grounds (see Section 1.f.).

A court hearing remains pending in the case of An-Nahar journalist Pierre Attallah, who was charged in absentia in June 1998 for defaming the judiciary and entering Israel.

The country has a strong tradition of academic freedom and a flourishing private educational system (a result of inadequate public schools and a preference for religious community affiliation). Students exercise the right to form campus associations, and the Government usually does not interfere with student groups.

b. Freedom of Peaceful Assembly and Association

The Constitution provides for freedom of assembly; however, the Government restricts this right. In 1998 the Government lifted its longstanding decree banning all demonstrations. Any group that wishes to organize a rally must obtain the prior approval of the Ministry of Interior, which does not render decisions consistently. Groups opposing government positions sometimes do not receive permits. Various political factions such as Amal, Hizballah, 'Awnists, and supporters of former Prime Minister Hariri held several rallies during the year; the 'Awnists demonstrated without a permit.

In June police forces prevented some 200 supporters of exiled General Michel 'Awn from erecting two plaques at Nahr Al-Kalb, north of Beirut; one plaque commemorated the Israel withdrawal from Lebanon and the second plaque was left blank in anticipation of a withdrawal of Syrian troops.

On several occasions during the year, military personnel used excessive force to disperse protesters, sometimes arresting protesters (see Sections 1.c. and 1.d.).

In October thousands of Palestinian refugees and Lebanese citizens demonstrated peacefully on numerous occasions against Israeli government actions in Israel, the West Bank, and Gaza.

The Constitution provides for freedom of association, and the Government generally respects this right and does not interfere with the establishment of private organizations; however, it imposes some limits on this right. The law requires organizations to obtain from the Ministry of Interior a receipt, which is essentially a permit, and may be withheld by the Ministry.

The Ministry of Interior scrutinizes requests to establish political movements or parties and to some extent monitors their activities. The Army Intelligence Service monitors the movements and activities of members of opposition groups (see Section 1.f.).

Syria does not allow groups that it considers openly hostile to operate in areas under its control.

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government generally respects this right in practice; however, there are some restrictions. Discrimination based on religion is built into the system of government. There are no legal barriers to proselytizing; however, traditional attitudes and edicts of the clerical establishment discourage such activity.

The State is required to ensure the free exercise of all religious rites provided that public order not be disturbed. The Constitution also provides that the personal status and religious interests of the population be respected. The Government permits recognized religions to exercise authority over matters pertaining to personal status, such as marriage, divorce, and

inheritance. There is no state religion; however, politics are based on the principle of religious representation, which has been applied to every conceivable aspect of public life.

A group that seeks official recognition must submit its dogma and moral principles for government review to ensure that such principles do not contradict popular values and the Constitution. The group must ensure that the number of its adherents is sufficient to maintain its continuity. Alternatively, religious groups may apply to obtain recognition through existing religious groups. Official recognition conveys certain benefits, such as tax-exempt status and the right to apply the recognized religion's codes to personal status matters.

The unwritten "National Pact" of 1943 stipulates that the President, the Prime Minister, and the Speaker of Parliament be a Maronite Christian, a Sunni Muslim, and a Shi'a Muslim, respectively. The Taif Accord, which ended the country's 15-year civil war in 1990, reaffirmed this arrangement but resulted in increased Muslim representation in Parliament and reduced the power of the Maronite President. The Accord called for the ultimate abolition of political sectarianism in favor of "expertise and competence." However, little substantive progress has been made in this regard. A "Committee for Abolishing Confessionalism," which was called for in the Taif Accord, has not yet been formed. Christians and Muslims are represented equally in the Parliament. Seats in the Parliament and Cabinet, and posts in the civil service, are distributed proportionally among the 18 recognized groups (see Section 3).

Each recognized religious group has its own courts for family law matters, such as marriage, divorce, child custody, and inheritance. State recognition is not a legal requirement for religious worship or practice. For example, although Baha'is, Buddhists, and Hindus are not recognized officially, they are allowed to practice their faith without government interference; however, their marriages, divorces, and inheritances in the country are not recognized under the law.

The Government does not require citizens' religious affiliations to be indicated on their passports; however, the Government requires that religious affiliation be encoded on national identity cards.

An individual may change his religion if the head of the religious group he wishes to join approves of this change. There are different personal status codes for each of the 18 officially recognized religious groups. Administered by representatives of the groups, these codes govern many areas of civil law, including marriage, divorce, inheritance, and child custody. Many families have relatives who belong to different religious communities, and intermarriage is not uncommon; however, intermarriage may be difficult to arrange in practice between members of some groups because there are no procedures for civil marriage. An attempt in 1998 by then-President Elias Hrawi to forward legislation permitting civil marriage failed in the face of opposition from the religious leadership of all confessions.

Article 473 of the Penal Code stipulates that one who "blasphemes God publicly" faces imprisonment for up to a year.

d. Freedom of Movement Within the Country, Foreign Travel Emigration and Repatriation

The Constitution provides for these rights, and the Government generally respects them in practice; however, there were some limitations prior to the Israeli withdrawal from the south. Travel to Israel is prohibited by law. All males between 18 and 21 years of age are subject to compulsory military service and are required to register at a recruitment office and obtain a travel authorization document before leaving the country. Husbands may block travel by their wives and minor children (see Section 5).

The LAF and Syrian troops maintain checkpoints throughout much of the country. Prior to the Israeli withdrawal from the south, the Lebanese Army, the IDF, and the SLA maintained tight restrictions on the movement of persons and goods in and out of Israel's self-declared security zone. Following the Israeli withdrawal, dozens of customs and military intelligence officers were dispatched to the south. In August the Government deployed approximately 1,000 ISF and LAF officers to the

south; however the officers were not deployed to the border by year's end. The ISF assumed responsibility for maintaining law and order in most of the region. Following the withdrawal, the Government announced that citizens no longer required permits to visit Jezzine. The U.N. Interim Forces in Lebanon also increased its area of operations in the country.

There are no legal restrictions on the right of all citizens to return. However, many emigres are reluctant to return for a variety of political, economic, and social reasons. The Government encouraged the return to their homes of over 600,000 persons displaced during the civil war. In 1999 and continuing during the year, the Central Fund for the Displaced paid 13,500 squatter families approximately \$65 million (97.5 billion Lebanese pounds) to move out of the homes they occupied and disbursed an additional \$133 million (195 billion Lebanese pounds) for the reconstruction and rehabilitation of homes that were damaged during the civil war. Although some persons have begun to reclaim homes abandoned or damaged during the war, the vast majority of displaced persons have not attempted to reclaim and rebuild their property. The resettlement process is slowed by tight budgetary constraints, destroyed infrastructure, political feuds, the lack of schools and economic opportunities, and the fear that physical security still is incomplete in some parts of the country. During the year, the Ministry of Displaced sponsored several reconciliation meetings between Christian and Druze residents in eight villages throughout Chouf and Aley.

Some 6,000 SLA militiamen and their families fled to Israel following the Israeli withdrawal and concurrent collapse of the SLA in May. Approximately 1,580 of these former SLA personnel returned to Lebanon, several hundred relocated elsewhere outside of Israel, and 4,400 remained in Israel at year's end. The former SLA personnel who returned to Lebanon faced trial for taking up arms against the State or for trading with the enemy and most received prison sentences of varying lengths (see Section 1.e.). Those who remain in Israel reportedly wish to avoid facing trial or fear possible retribution. The Government publicly stated that the former SLA militiamen are welcome to return to the country; however, they would face trial upon their return.

Most non-Lebanese refugees are Palestinians. The U.N. Relief and Works Agency (UNRWA) reported in 1999 that the number of Palestinian refugees in the country registered with the UNRWA was about 370,000. This figure, which includes only the families of refugees who arrived in 1948, is presumed to include many thousands who reside outside the country. Most experts estimate the actual number now in the country to be fewer than 200,000. Most Palestinian refugees are unable to obtain citizenship and are subject to governmental and societal discrimination; however, Palestinian women who marry Lebanese men can obtain citizenship (see Section 5).

The Government issues laissez-passers (travel documents) to Palestinian refugees to enable them to travel and work abroad. In January 1999, the Government eased the tight travel restrictions that it previously imposed on Palestinians resident in the country and entering from other countries by revoking a decision that had required all Palestinian refugees who hold Lebanese travel documents to obtain entry and exit visas when entering or leaving the country. However, in March 1999, the Government stopped issuing visitors' visas to Jordanian nationals who were born in Lebanon and are of Palestinian origin.

There are no legal provisions for granting asylum or refugee status in accordance with the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol. The Government does not grant first asylum. The Government grants admission and temporary (6 months) refuge to asylum seekers, but not permanent asylum. The Government generally cooperates with the offices of the U.N. High Commissioner for Refugees (UNHCR) and UNRWA.

There are nearly 3,600 non-Palestinian refugees (mostly Iraqi Shi'a and Kurds) residing in the country, according to the UNHCR. The Surete Generale periodically detains non-Palestinian refugees, primarily Iraqis and Sudanese, for illegal entry. Some of those detained are registered with the UNHCR and are eligible for resettlement outside the country. The Surete Generale denies UNHCR officials access to the detainees. There were credible reports that the Surete Generale detained Iraqi refugees and deported them back to Iraq.

The Government granted political asylum to Japanese Red Army (JRA) member Kozo Okamoto, citing services rendered to the Arab cause and his physical incapacity; Okamoto led the massacre at Israel's Lod airport in 1972. The Government refused to grant asylum to four other JNA members and deported them to Japan.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution states that citizens have the right to change their government in periodic free and fair elections; however, effective lack of control over parts of the country, defects in the electoral process, and strong Syrian influence over politics and decisionmakers significantly restrict this right. There was some improvement in the parliamentary elections held in August and September in that there were fewer incidents of voter fraud and tampering with ballots than in the previous election; however, the electoral process was flawed by serious shortcomings.

According to the Constitution, elections for the Parliament must be held every 4 years. The Parliament, in turn, elects the President every 6 years. The President and Parliament nominate the Prime Minister, who, with the President, chooses the Cabinet. According to the unwritten "National Pact of 1943," the President is a Maronite Christian, the Prime Minister a Sunni Muslim, and the Speaker a Shi'a Muslim (see Section 2.c.). Since the National Reconciliation Agreement reached in Taif, Saudi Arabia in 1989, which revised the 6 to 5 ratio of Christian to Muslim seats in Parliament, there has been a 50-50 balance between Christian and Muslim Members of Parliament. The Taif Accord also increased the number of seats in Parliament and transferred some powers from the Maronite President to the Sunni Prime Minister and the religiously mixed Cabinet.

Parliamentary elections in August and September were flawed. The Syrian Government heavily influenced the electoral law governing the process and also pre-approved all of the candidates on alliance slates who ultimately won seats in the Cabinet. Security officials promoted relatives and political allies, and government officials supervised voting. The Government also used the official television station, Teleliban to promote progovernment candidates and to denigrate the leading opposition candidate, former Prime Minister Rafiq Hariri. Officials applied inconsistent voting regulations, often favoring progovernment candidates. Officials of various security services became personally involved in promoting candidates who were political allies or relatives. Nonetheless, Prime Minister Hoss lost his seat in a contested election as did many progovernment candidates. Following his overwhelming victory in the Beirut electoral districts, former Prime Minister Hariri was appointed Prime Minister on October 23. Following consultation between the Government and senior Syrian officials, President Lahoud and Prime Minister Hariri reached an agreement on the composition of the new Cabinet.

In 1998 the Parliament elected a new President after amending the Constitution on a one-time basis to permit senior government officials to run for office. (The Constitution prohibits senior government officials from running for president unless they resign at least 2 years before the election. The amendment provided for a one-time exception to this provision.) There was substantial criticism of the Syrian role in influencing political leaders in the selection of the presidential candidate; however, there was broad public support for the new President, Emile Lahoud, who took office in November 1998. In 1999 municipal elections were held in 39 villages and towns. Local observers reported that the elections were generally free and fair; however, they were characterized by a number of irregularities, including the absence of names from voting lists, the closure of the registration department on voting day, and the presence of security personnel in polling stations. By-elections in the areas formerly occupied by Israel are scheduled to be held in 2001.

Women have the right to vote and there are no legal barriers to their participation in politics; however, there are significant cultural barriers, and women are underrepresented in government and politics. No woman has ever held a cabinet position. In September 3 women were elected to the 128-seat Parliament.

Palestinian refugees have no political rights (see Section 5). An estimated 17 Palestinian factions operate in the country, generally organized around prominent individuals. Most Palestinians live in refugee camps controlled by one or more factions. The leaders of the refugees are not elected, but there are "popular committees" that meet regularly with the UNRWA and visitors.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Several local human rights groups operate freely without overt government restriction, including the Lebanese Association for Human Rights, the Foundation for Human and Humanitarian Rights-Lebanon, and the National Association for the Rights of the Disabled. Some of these groups have sought to publicize the detention in Syria of hundreds of Lebanese citizens and took credit in part for the release of a number of Lebanese from Syrian jails during 1998 (see Section 1.d.). The Bar Association and other private organizations regularly hold public events that include discussion of human rights issues. Some human rights groups reported harassment and intimidation by government, Syrian, Hizballah, and SLA forces.

In July AI opened an office in the country.

During the year, government officials discussed human rights problems with representatives of foreign governments and NGO's.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution calls for "social justice and equality of duties and rights among all citizens without prejudice or favoritism;" however, in practice aspects of the law and traditional beliefs discriminate against women. Religious discrimination is built into the political system. The law gives preferences to the disabled for employment in government positions. Discrimination based on race, language, or social status is illegal and is not widespread among citizens; however, foreign domestic servants often are mistreated.

Women

Violence against women is a problem. The press reports cases of rape with increasing frequency, and cases reported are thought to be only a fraction of the actual number. There are no authoritative statistics on the extent of spousal abuse. Most experts agree that the problem affects a significant portion of the female population. In general battered or abused women do not talk about their suffering for fear of bringing shame upon their own families or accusations of misbehavior upon themselves. Some religious courts legally can compel a battered wife to return to the house in spite of physical abuse. Many women are compelled to remain in abusive marriages because of social and family pressures. Possible loss of custody of children and the absence of an independent source of income also prevent women from leaving their husbands. Doctors and social workers believe that most abused women do not seek medical help because of shame or inability to pay for treatment. The Government has no separate program to provide medical assistance to battered women; however, it provides legal assistance to victims of crimes who cannot afford it regardless of the gender of the victim. In most of the cases, the police ignore complaints submitted by battered or abused women. The Lebanese Council to Resist Violence Against Women, which was founded in 1997, has been active in working to reduce violence against women by offering counseling and legal aid, and raising awareness about domestic violence.

Foreign domestic servants often are mistreated, abused, and in some cases, raped. Asian and African female workers have no legal recourse available to them because of their low status and isolation from society and because the labor laws do not protect them (see Section 6.e.). Because of such abuse, the Government prohibits foreign women from working if they are from countries that do not have diplomatic representation in the country.

The legal system is discriminatory in its handling of so-called "honor crimes." According to the Penal Code, a man who kills his wife or other female relative may receive a reduced sentence if he demonstrates that he committed the crime in response to a socially unacceptable sexual relationship conducted by the victim. However, in 1999 the law was amended to increase the severity of the sentence for perpetrators of "honor crimes." Several instances of honor crimes are reported in the media every year.

Women have varying employment opportunities in government, medicine, law, academia, the arts, and to a lesser degree, business. However, social pressure against women pursuing careers is strong in some parts of society. Men sometimes exercise considerable control over female relatives, restricting their activities outside the home or their contact with friends and relatives. Women may own property but often cede control of it to male relatives for cultural reasons and because of

family pressure. In 1994 the Parliament removed a legal stipulation that a woman must obtain her husband's approval to open a business or engage in a trade. Husbands may block foreign travel by their wives (see Section 2.d.). The testimony of a woman is equal to that of a man (see Section 1.e.). During the year, the Government amended some labor laws affecting women. For example, maternity leave was extended and women no longer are forbidden from working at night.

Only men may confer citizenship on their spouses and children. Accordingly, children born to citizen mothers and foreign fathers are not eligible for citizenship. Citizen widows may confer citizenship on their minor children.

Religious groups administer their own family and personal status laws (see Section 2.c.). There are 18 recognized religious groups, each of which differs in its treatment of marriage, family, property rights, and inheritance. Many of these laws discriminate against women. For example, Sunni inheritance law provides a son twice the inheritance of a daughter. Although Muslim men may divorce easily, Muslim women may do so only with the concurrence of their husbands. There is no law that permits civil marriages, although such ceremonies performed outside the country are recognized by the State. Only religious authorities may perform marriages.

Children

The plight of children remains a serious concern; however, the Government has not allocated funds to protect them. Many children, particularly in rural areas, take jobs at a young age to help support their families. In lower income families, boys generally receive more education, while girls usually remain at home to perform housework. Illiteracy rates have reached 37.5 percent. In 1998 the Government enacted a law making education free and compulsory until the age of 12. However, public schools generally are inadequate, and the cost of private education is a significant problem for the middle and lower class. The Government also raised the age of child employment from 8 to 13.

An undetermined number of children are neglected, abused, exploited, and even sold to adoption agents. The normal procedure for adoption is through religious homes or institutions authorized to arrange adoption; however, the demand to provide infants for adoption abroad results in illegal international adoptions. There are no statistics available concerning the prevalence of the illegal adoption of infants. Poor children often are compelled by their parents to seek employment, and often take jobs that jeopardize their safety, including in industry, car mechanic shops, and carpentry (see Section 6.d.). Because of their ages, wages earned by such children are not in conformity with labor regulations. The Government does not have specific child protection laws to remove children from abusive situations and does not grant NGO's adequate legislative standing to litigate on behalf of abused minor children.

There are hundreds of abandoned children in the streets nationwide, some of whom survive by begging, others by working at low wages. In 1999 the first Center for Street Children was opened to house and rehabilitate street children. The Center has been active in gathering children from various regions and providing a home for them. The Center places disabled children in institutions and refers children with police records to juvenile courts.

Juvenile delinquency is on the rise; many delinquents wait in ordinary prisons for trial and remain there after sentencing. Although their number is small, there is no adequate place to hold delinquent girls; therefore, they are held in the women's prison in Ba'abda. Limited financial resources have hindered efforts to build adequate facilities to rehabilitate delinquents. The Government operates a modern juvenile detention facility in Ba'asir, which opened in 1998.

The Committee for Children's Rights, formed in 1993 by prominent politicians and some local NGO's, has been lobbying for legislation to improve the condition of children. The Ministry of Social Affairs oversees the Higher Council for Childhood and the National Committee for Literacy. The Higher Council for Childhood prepared legal studies and produced progress reports on national compliance with the Convention on the Rights of the Child. The Ministry of Health requires the establishment of health records for every child up to 18 years of age.

People with Disabilities

Over 100,000 persons became disabled during the civil war. Care of the disabled generally is performed by families. Most efforts to secure education, independence, health, and shelter for the disabled are made by some 100 private organizations. These organizations are relatively active, although poorly funded.

The heavily damaged cities make few accommodations for the disabled. The Government does not mandate building code requirements for nongovernment buildings for ease of access by the disabled, although the Government in its rebuilding projects has constructed sidewalks in some parts of Beirut that allow access for the disabled. The private "Solidere" project for the reconstruction of downtown Beirut has self-imposed requirements for disabled access. This project is considered a model for future construction efforts around the country.

During the year, the Parliament passed amendments to the law on disabled persons, which stipulates that at least 3 percent of all government and private sector positions should be filled by persons with disabilities, provided that such persons fulfill the qualifications of the position. The amendments provide the private sector with tax reduction benefits if the number of disabled that were hired exceeded the number specified in the law. The amendments also impose new building codes in all government buildings and require that public transportation be accessible for disabled persons.

Religious Minorities

Discrimination based on religion is built into the system of government (see Sections 2.c. and 3). The amended Constitution of 1990 embraces the principle of abolishing religious affiliation as a criterion for filling government positions, but few practical steps have been taken to accomplish this aim. One notable exception is the Lebanese Armed Forces, which, through universal conscription and an emphasis on professionalism, has reduced significantly the role of religious sectarianism in that organization. Each religious group has its own courts for family law matters, such as marriage, divorce, child custody, and inheritance.

On October 3, 1999, one person was killed when a bomb exploded in a Maronite church in an eastern Beirut suburb. There were no arrests made in this case during the year.

Throughout the fall of 1999, approximately six random bombings were carried out against Orthodox churches and shops that sold liquor; the bombings took place in the northern city of Tripoli and in surrounding areas. The Government suspected that radical Sunni extremists carried out the bombings in retaliation for Russian military operations in Chechnya. Police officials detained and allegedly tortured a number of Sunni youths for suspected involvement in these bombings; however, the youths later were released due to a lack of evidence (see Section 1.d.).

In December 1999, Sunni extremists killed four LAF soldiers in an ambush in the northern region of Dinniyeh after the soldiers attempted to arrest two Sunni Muslims allegedly involved in a series of church bombings. On December 31, 1999, the LAF retaliated by launching a massive military operation against Sunni extremists in the north. Five civilians, 7 LAF soldiers, and 15 extremists were killed in this operation (see Section 1.a.).

National/Racial/Ethnic Minorities

According to the United Nations, an estimated 370,000 Palestinian refugees are registered in the country (see Section 2.d.); however, it is believed that fewer actually reside there. Most Palestinian refugees live in overpopulated camps that have suffered repeated heavy damage as a result of fighting. The Government generally has prohibited the construction of permanent structures in the camps on the grounds that such construction encourages the notion of permanent refugee settlement in the country. Refugees fear that in the future the Government may reduce the size of the camps or eliminate them completely.

The Government officially ended its practice of denying work permits to Palestinians in 1991. However, in practice, very few Palestinians receive work permits, and those who find work usually are directed into unskilled occupations. They and other foreigners may own a limited size plot of land but only after obtaining the approval of five different district offices. The law

applies to all foreigners, but for political, cultural, and economic reasons it is applied in a manner disadvantageous to Palestinians and, to a lesser extent, to the 25,000 Kurds in the country. The Government does not provide health services to Palestinian refugees, who rely on UNRWA and UNRWA-contracted hospitals.

In recent years, Palestinian incomes have declined as the Palestine Liberation Organization (PLO) closed many of its offices in the country, which formerly employed as much as 50 percent of the Palestinian work force. Palestinian children reportedly have been forced to leave school at an early age because U.N. relief workers do not have sufficient funds for education programs. The U.N. estimates that 18 percent of street children are Palestinian. Drug addiction and crime reportedly are increasing in the camps, as is prostitution, although reliable statistics are not available. In August 1999, the Fatah faction of the PLO expanded its operations in the Ain al-Hilwah refugee camp by opening security offices and hiring personnel to maintain order in the camps.

Section 6 Worker Rights

a. The Right of Association

All workers, except government employees, may establish and join unions and have a legal right to strike. Worker representatives must be chosen from those employed within the bargaining unit. About 900,000 persons form the active labor force, 42 percent of whom are members of 160 labor unions and associations. Twenty-two of the unions, with about 200,000 workers, are represented in the General Confederation of Labor (GCL).

In general the Government does not control or restrict unions, although union leaders allege credibly that in the past, the Government has tried to interfere in elections for union officials.

Palestinian refugees may organize their own unions; however, because of restrictions on their right to work, few Palestinians participate actively in trade unions.

Unions are free to affiliate with international federations and confederations, and they maintain a variety of such affiliations.

b. The Right to Organize and Bargain Collectively

The right of workers to organize and to bargain collectively exists in law and practice. Most worker groups engage in some form of collective bargaining with their employers. Stronger federations obtain significant gains for their members and on occasion have assisted nonunionized workers. There is no government mechanism to promote voluntary labor-management negotiations, and workers have no protection against antiunion discrimination.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

Forced labor is not prohibited by law. In the absence of a prohibition against it, children (see Section 5), foreign domestic servants, and other foreign workers (see Section 6.e.) sometimes are forced to remain in situations amounting to coerced or bonded labor.

e. Status of Child Labor Practices and Minimum Age for Employment

The 1946 Labor Code stipulates that workers between the ages of 8 and 16 may not work more than 7 hours a day, with 1 hour of rest provided after 4 hours. In 1996 the Ministry of Labor amended this law to define workers under the age of 13 as child labor, in accordance with international obligations. Children are prohibited from working between the hours of 7 p.m. and 6 a.m. The code also prohibits certain types of mechanical work for children between the ages of 8 and 13, and other

types for those between the ages of 13 and 16. In 1999 the Government passed legislation that prohibits children under the age of 16 from working in jobs that jeopardize their health, safety, or morals and requires that employers give children at least 20 hours of annual leave. In June the Parliament passed amendments to the Labor Code that prohibit children under age 18 from working more than 6-hour days, with 1 hour of rest for days of more than 4 hours of work, and from working between the hours of 7 p.m. and 7 a.m. The proposed amendments would also entitle children to 20 hours of annual paid leave. The Ministry of Labor is responsible for enforcing these requirements; however, it does not apply the law rigorously. Forced and bonded child labor is not prohibited and sometimes occurs (see Section 6.c.).

Children between the ages of 10 and 14 constitute 0.6 percent of the labor force (5,936 children in total), according to 1996 figures. Most of these child laborers are Lebanese, but some are Syrian; they work predominantly in the industrial, craft, and metallurgical sectors. According to a 1995 UNICEF study, 60 percent of working children are below 13 years of age and 75 percent earn wages below two-thirds of the minimum wage. Nearly 40 percent of working children work 10 to 14 hours per day, and few receive social welfare benefits. In addition, approximately 52,000 children between the ages of 15 and 19 are in the active labor force; they are not eligible for the minimum wage until they reach the age of 21.

e. Acceptable Conditions of Work

The Government sets a legal minimum wage, currently about \$200 (300,000 Lebanese pounds) per month. The law is not enforced effectively in the private sector. In theory the courts could be called upon to enforce it, but in practice they are not. The minimum wage is insufficient to provide a decent standard of living for a worker and family. Trade unions attempt to ensure the payment of minimum wages in both the public sector and the large-scale private sector.

The Labor Law prescribes a standard 6-day workweek of 48 hours, with a 24-hour rest period per week. In practice workers in the industrial sector work an average of 35 hours a week and workers in other sectors work an average of 30 hours a week. Foreign domestic servants, mostly of Asian and African origin, often are mistreated, abused, and raped. The employment contract for a foreign worker is signed by a recruitment agency and the employer; workers rarely are a party to the contract or, if they are a party, do not know what the contract stipulates because it is written in Arabic. The passports of foreign domestic workers are confiscated by the recruitment agency or their employer when the workers arrive at the airport. Foreign domestic servants are not protected by labor laws. Domestic servants often work 18 hours per day and, in most cases, do not receive time off for vacations or holidays. There is no minimum wage for domestic servants; their average wage is about \$100 (150,000 Lebanese pounds) per month. They have no entitlement to government financial assistance. Many foreign workers leave their jobs--which is not against the law--but their employers often report them as thieves to the police in order to locate them and force them to return.

The law includes specific occupational health and safety regulations. Labor regulations require employers to take adequate precautions for employee safety. The Ministry of Labor is responsible for enforcing these regulations, and it does so unevenly. Labor organizers report that workers do not have the right to remove themselves from hazardous conditions without jeopardizing their continued employment.

f. Trafficking in Persons

The law does not prohibit specifically trafficking in persons; however, the Penal Code stipulates that "any person who deprives another of freedom either by abduction or any other means shall be sentenced to temporary hard labor." If forced prostitution or forced rendering of sexual services occurs as a result of the abduction, the Penal Code stipulates that the abductor be sentenced to at least 1 year in prison. There were no reports that persons were trafficked to, from, within, or through the country.

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